STATE
versus
ANDREW KUCHERA
and
LEONARD ZIBWOWA

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 28 July 2026

Review Judgment

CHITAPI J: The two accused persons appeared before the provincial magistrate at Mbare Magistrates court on 12 March 2024. They were charged with the offence of theft of trust property as defined in section 113 (2) (d) of the Criminal Law (Codification and Reform) Act [*Chapter 9-23*]. It was alleged that the accused persons unlawfully converted to their own and they failed to account for unused fencing material valued at US$4692,00 after they completed a farming contract with the complainant in Chinhoyi in or about March, 2024.

Upon arraignment, the accused pleaded guilty to the charge. They were each sentenced to 18 months imprisonment, of the 18 months, 6 months were suspended on the usual condition of good behavior. A further six months were suspended on condition that the accused should each restitute an equal amount of US$2 246 to the complainant through the clerk of court by 30 April 2024. The remaining 6 months were suspended on condition that the accused should perform community service of 210 hours at separate named centers.

When the record was placed on review, I raised a query that the learned provincial magistrate appeared not to have conducted the plea proceedings as provided for in section 271 (2) (b) of the Criminal Procedure and Evidence Act [*Chapter 9:23*] as extrapolated in case law. I raised the query as follows:

> "There is no explanation for the charge nor its content. Can the learned magistrate explain why she appears not to be guided by authority of Judgments of this Court. Respond within 10 days of the date of this letter."

In the response the learned provincial magistrate responded as follows in material part.

> "I have noted the query raised by Honourable Justice T.H Chitapi. I wish to respond and state with regret that I have absolutely no reason or explanation why I did not record the explanation of the charge. I sincerely apologize for that and I can only attribute it to being my first week at the criminal court after three continuous years of dealing with civil matters."

The learned provincial magistrate went to explain that she was under tremendous pressure as she grappled with understanding sentencing guidelines. She then averred that she had in fact gone through the guilty plea motions. She stated:

> "I also wish to bring it to your attention that despite the failure, to record the charge, it was clearly explained and the unrepresented parties appreciated all the proceedings and it is my sincere belief that they were not prejudiced by my conduct. They have both completed community service. I undertake never to repeat such conduct in future."

It is appreciated and indeed that the learned provincial magistrate admitted her error. However, the explanation that she has no explanation or reason for the procedural short comings which she committed tends to show that she perfunctory deposed of the trial by guilty plea procedure. Her argument that the accused person did not suffer prejudice through her acts of omission hardly deserve scrutiny. The process of trial disposal by way of guilty plea procedure is a legislative imperative. The charge must be explained to the accused. The explanation given to the accused must be recorded. The response of the accused must be recorded. Where the accused has pleaded guilty, the court must record and explain the essential elements of the charge or offence and the accused's response to the essential enquiry. There are a lot of cases on the issue of guilty pleas and one is forgiven for saying that it is a tried narrative which must pass as a common cause that every magistrate is deemed to be aware of the guilty plea trial procedure.

In the case of *S* v *Jambo* HH 239 which is my review judgment on the guilty plea procedure and with which KWENDA J concurred with, it is stated:

> "The record shows that the magistrate did not explain the charge before the accused was called upon to answer or plead to the charge. The failure to do so and to record the

> explanation, assuming one was given, violates the proceedings as stated in the two cases referred to and many other cases where guidelines have been given
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> It is refreshing to note that the bulk of the magistracy has I think passed the test on the proper procedure to follow in disposing of guilty pleas. One hardly comes across a record wherein the procedure is not followed."

This case under review was one of the odd ones where the procedure was not followed. For context the often case judgments referred to in the review judgment are *S* v *Mangwende* HH 695/20 and *S* v *Mutokodzi* HH 299/21. These judgments elaborate on the correct procedure. In relation to the justification of the procedure for guilty plea trials, commonly called plea cases, the following is stated in *S* v *Jambo* case *(supra)*

> "The procedure is intended to assist the accused who is unrepresented to understand the charge before he pleads guilty. The right to a fair trial exists to cater for the accused who is subjected to a full trial. A failure to follow a legislated procedure is fatal to the proceedings where the procedure has not been followed. The court has a no discretion to adopt a different procedure from the legislated one."

In *casu* the proceedings would have been set aside and corrected by an order for a trial *denovo.* However, such a course no longer serves any purpose since the accused have served their sentence. Accordingly, being unable to satisfy the proceedings as being in accordance with real and substantial I withhold my certificate.

CHITAPI J:…….